

proscribes enactments originally characterized as bills of pains and penalties, that is, legislative Acts inflicting punishment other than execution. *United States v. Lovett, supra*, at 323-324 (Frankfurter, J., concurring); *Cummings v. Missouri, supra*, at 323; Z. Chafee, Jr., *Three Human Rights in the Constitution of 1787*, p. 97 (1956). Generally addressed to persons considered disloyal to the Crown or State, "pains and penalties" historically consisted of a wide array of punishments: commonly included were imprisonment,³⁶ banishment,³⁷ and the punitive confiscation of property by the sovereign.³⁸ Our country's own experience with bills of attainder resulted in the addition of another sanction to the list of impermissible legislative punishments: a legislative enactment barring designated individuals or groups from participation in specified employments or vocations, a mode of punishment commonly employed against those legislatively branded as disloyal. See, e. g., *Cummings v. Missouri, supra* (barring

tenure" and hoped that it "may in process of time be abolished by act of parliament." 4 W. Blackstone Commentaries *388. The Framers of the United States Constitution responded to this recommendation. Art. III, § 3.

³⁶ See, e. g., 10 & 11 Will. 3, c. 13 (1701): "An Act for continuing the Imprisonment of *Counter* and others, for the late horrid Conspiracy to assassinate the Person of his sacred Majesty."

³⁷ See, e. g., *Cooper v. Telfair*, 4 Dall. 14 (1800) ("all and every the persons, named and included in the said act [declaring persons guilty of treason] are banished from the said state [Georgia]'"); 2 R. Wooddeson, *A Systematical View of the Laws of England* 638-639 (1792) (banishment of Lord Clarendon and the Bishop Atterbury). See *Kennedy v. Mendoza-Martinez*, 372 U.S. 144, 168, n. 23 (1963).

³⁸ Following the Revolutionary War, States often seized the property of alleged Tory sympathizers. See, e. g., *James's Claim*, 1 Dall. 47 (1780) ("*John Parrock* was attainted of *High Treason*, and his estate seized and advertised for sale"); *Respublica v. Gordon*, 1 Dall. 233 (1788) ("attainted of treason for adhering to the king of *Great Britain*, in consequence of which his estate was confiscated to the use of the commonwealth . . .").